

54	Hernandez vs. Orchard Supply Hardware LLC 23-01314896	Motion to Be Relieved as Counsel of Record The Motion to be Relieved brought by John C. Carpenter, Esq. and Asa O. Eaton, Esq. is CONTINUED to 6/05/2026 at 8:30 AM, to ensure complete compliance with California Rules of Court rule 3.1362. While the mandatory declaration form indicates counsel confirmed their client’s last known address by mail, telephone and conversation, the declaration does <i>not</i> indicate this confirmation occurred within the past 30 days, as required. (§3(b) of ROA No. 105.) Counsel requests the Court grant the motion regardless, as “Plaintiff by and through her Guardian Ad Litem has remained out of contact with Counsel despite numerous attempts to re-establish contact through her known address, email address, and telephone number” (§3(c) of Declaration [ROA No. 105]); however, California Rules of Court rule 3.1362 requires efforts to make contact within the last 30 days, <i>regardless</i>. The alternative to a declaration which establishes the address is “current” (meaning confirmed within 30 days) is a declaration which states: “The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.” (Cal. Rules of Court rule 3.1362(d)(1)(B).) In an abundance of caution, and to ensure proper notice to the identified client (in this case a minor proceeding via Guardian Ad Litem), the Court continues this hearing and requests an additional declaration, which addresses the efforts made to locate Plaintiff’s current address and the timing in which they were made. This declaration shall be filed no later than 9 court days prior to the continued hearing date. Additionally, Counsel is directed to give notice of the continued hearing date to all parties in this action, as well as the client, and to file a proof of service which establishes compliance with the above, no later than 9 court days prior to the continued hearing date.
56	Gonzalez vs. New Century Enterprises, LLC 25-01507855	Demurrer to Complaint Defendant New Century Enterprises, LLC demurs to the third, fifth, and sixth causes of action asserted in the Complaint filed by Plaintiff Rosa Maria Gonzalez. The demurrer is OVERRULED as to the third cause of action and SUSTAINED as to the fifth and sixth causes of action. Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it within 15 days of service of notice of ruling. In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.)